

INNOVATION AND ENTREPRENEURSHIP

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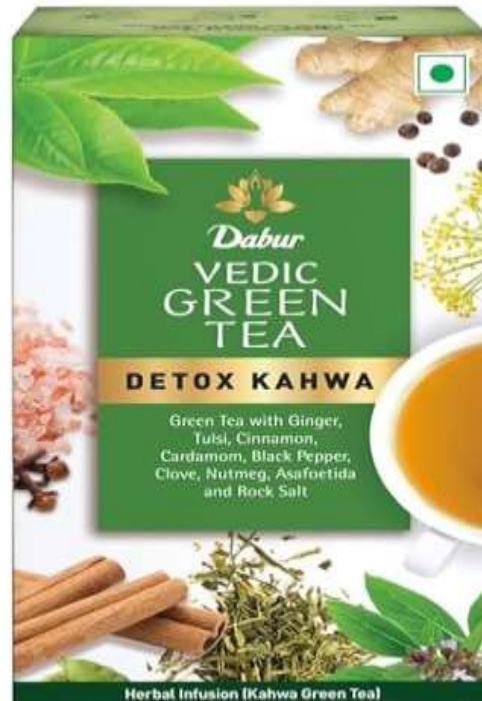
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Project planning

- **Project planning is a crucial part of project management focused on creating a detailed plan that outlines the steps and resources necessary to achieve the project's objectives, including identifying the project's scope, establishing a timeline, assigning tasks and resources, and budgeting for the project.**
- **A project plan—sometimes called a work plan—is a blueprint of the goals, objectives, and tasks your team needs to accomplish for a specific project.**
- Project planning refers to the **process of organizing tasks that are to be carried out within a given period.** The aim of project planning is to determine the **cost**, the **resources** needed and the best way of **scheduling** all of the tasks to be carried out. In other words, having a clear vision of your project and completing it in a minimum of time.

- Dabur planned to launch a new range of **Ayurvedic herbal teas** to expand its product line, **targeting health-conscious consumers**.
- The project **involved** conducting **market research** to understand **customer preferences**, **developing unique formulations** with Ayurvedic ingredients like **tulsi and ashwagandha**, and setting up a production line.
- Dabur **partnered with local farmers** for sustainable herb sourcing and implemented **strict quality controls**.
- A **marketing campaign** was planned to highlight the **health benefits**, with **distribution channels including e-commerce and retail stores**.
- The project aimed for a **six-month timeline**, from market research to product launch, with ongoing monitoring of sales and customer feedback

Dabur ayurvedic herbal teas

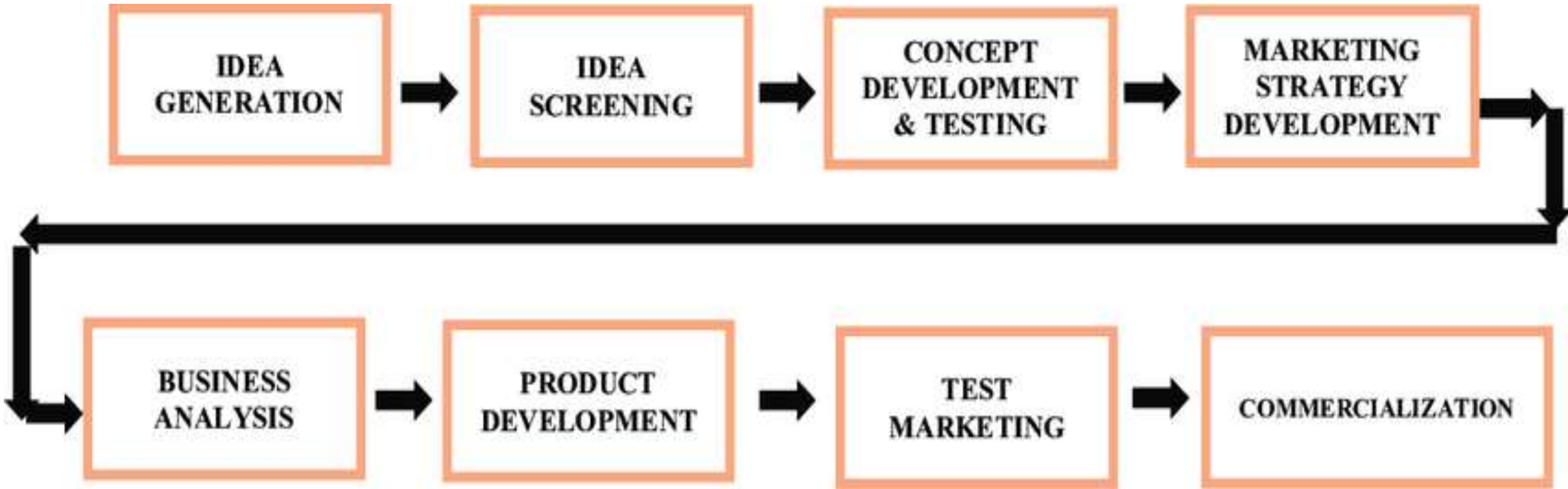


Product Development

- Product development typically refers to all stages involved in bringing a product from concept or idea through market release and beyond. In other words, product development incorporates a **product's entire journey**.
- **Product development - also called new product management - is a series of steps that includes the conceptualization, design, development and marketing of newly created or rebranded goods and services.**
- Product development includes a **product's entire journey, from the initial idea to its market release and later.**

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Product Development Process



1. Idea Generation

- Idea generation is the first stage of the product development process. It involves the creation of new ideas for products or services that can address unmet needs or capitalize on market opportunities. This stage is crucial because it lays the foundation for the entire product development process.

Sources of Ideas:

- **Internal Sources:** Employees, research and development (R&D) teams, and brainstorming sessions can be rich sources of ideas. Companies often encourage their employees to contribute ideas through innovation programs or suggestion schemes.
- **External Sources:** Customers, competitors, suppliers, and market trends can also provide valuable insights. Customer feedback, social media, and industry reports are common tools used to gather external ideas.

Techniques for Idea Generation:

- **Brainstorming:** Group sessions where participants freely share ideas, encouraging creativity and innovation.
- **Mind Mapping:** A visual technique that helps in exploring and organizing ideas around a central concept.
- **SWOT Analysis:** Analysing strengths, weaknesses, opportunities, and threats to identify potential areas for new products.

2. Idea Screening

Idea screening is the process of evaluating and filtering ideas generated in the first stage. The goal is to identify the **most promising** ideas that **align with the company's strategic objectives** and have the potential for market success.

Criteria for Screening:

- **Market Potential:** Does the idea address a significant market need? Is there a demand for the product?
- **Feasibility:** Can the product be developed within the company's resources, including budget, technology, and expertise?
- **Profitability:** Will the product generate sufficient revenue to justify the investment?
- **Alignment with Strategy:** Does the idea fit with the company's overall business strategy and brand image?

Decision-Making Tools:

- **Scoring Models:** Assigning scores to ideas based on various criteria such as feasibility, market potential, and alignment with business goals.
- **Cost-Benefit Analysis:** Comparing the expected costs of developing the product against the potential benefits.

Example: A pharmaceutical company in India might screen ideas for new drugs by considering factors such as the prevalence of the **target disease, competition, regulatory requirements, and the potential for patent protection.**

3. Concept Development and Testing:

Concept development and **testing involve** turning a promising idea into a detailed **product concept and testing idea in line with potential customers**. This stage is crucial for understanding how the **target market** perceives the product and whether it meets customer needs.

Concept Development: Define the product in terms of features, benefits, and value proposition.

Example: An Indian consumer electronics company might develop a concept for a new smartphone that emphasizes long battery life and durability, targeting rural consumers.

4. Market Research and Business Analysis: Market research and business analysis are essential for understanding the market dynamics and assessing the viability of the product concept. This stage involves **detailed research into market size, competition, customer preferences, and financial projections.**

Market Research:

- **Target Market Analysis:** Identifying the demographics, psychographics, and behaviours of the target market.
- **Competitive Analysis:** Analysing the strengths and weaknesses of competitors and identifying gaps in the market.
- **Trend Analysis:** Monitoring industry trends, technological advancements, and consumer behavior that could impact the product's success.

Business Analysis:

- **Financial Projections:** Estimating costs, revenue, and profitability. This includes calculating the break-even point, return on investment (ROI), and net present value (NPV).
- **Risk Assessment:** Identifying potential risks and developing strategies to mitigate them.
- **Regulatory Considerations:** Ensuring that the product complies with relevant laws and regulations, which is particularly important in industries like pharmaceuticals and food.

5. Product Design and Development: Product design and development is the stage where the product concept is transformed into a tangible product. This stage involves **collaboration between various departments, including R&D, engineering, design, and marketing.**

Product Design and Development:

- **Design Specifications:** Developing detailed specifications for the product's design, including functionality, aesthetics, and user experience.
- **Prototyping:** Creating prototypes to test the design and functionality of the product. Iterative testing and refinement are often required.
- **Engineering:** Translating design specifications into technical requirements and manufacturing processes.

6. Product Testing and Market Testing: Product testing and market testing are critical stages where the product is tested in real-world conditions and feedback is gathered from actual users. This stage helps identify any issues that need to be addressed before the full-scale launch.

Product Testing:

- **Alpha Testing:** Internal testing conducted by the development team to identify and fix any issues in the product's design or functionality.
- **Beta Testing/Market testing:** Testing the product with a limited group of external users to gather feedback on performance, usability, and overall satisfaction.

7. Product Launch: The product launch stage is when the product is introduced to the market. This stage involves **executing a well-planned launch strategy that includes marketing, sales, and distribution efforts.**

Launch Planning:

- **Marketing Strategy:** Developing a comprehensive marketing plan that includes **advertising, promotions, public relations, and digital marketing.** The goal is to create awareness and generate demand for the product.
- **Distribution Strategy:** Ensuring that the product is **available in the right channels, whether through online platforms, retail stores, or direct sales.** Effective distribution is key to reaching the target market.
- **Sales Training:** Preparing the sales team with the knowledge and tools they need to effectively sell the product and address customer inquiries.

8. Post-Launch Evaluation and Product Lifecycle Management: Post-launch evaluation and product lifecycle management involve **monitoring the product's performance** in the market, making necessary adjustments, and planning for future developments.

Performance Monitoring:

- **Sales Analysis:** Tracking sales data to assess the product's success and identify trends.
- **Customer Feedback:** Continuously gathering and analysing customer feedback to understand satisfaction levels and areas for improvement.

Godrej Appliances – The Launch of the ChotuKool Refrigerator

Godrej Appliances identified the need for a low-cost cooling solution for rural India, where conventional refrigerators were unaffordable and often impractical due to inconsistent electricity supply.

- 1.Idea Generation & Idea screening:** Godrej realized that millions of rural households **lacked access to refrigeration**, so they conceptualized an affordable, compact cooling solution.
- 2.Concept development:** Godrej defined the product as an **affordable, portable, and energy-efficient** cooling solution for rural consumers, where access to reliable electricity was minimal.
- 3.Market Research:** The company developed a basic prototype of the ChotuKool, a 7.8-litre fridge that used thermoelectric technology instead of a compressor, making it portable and energy-efficient.
- 4.Product Design:** The design was kept simple and **portable, with a lightweight** body and a focus on user-friendly operation.
- 5.Product & market Testing:** The product was **tested in rural** settings, and user feedback was incorporated to enhance performance and practicality. It was also evaluated on energy consumption and durability.
- 6.Product launch:** Godrej launched ChotuKool at an **affordable price, specifically targeting rural consumers**. The product was a hit due to its innovative design, affordability, and energy efficiency, solving the unique problems faced by the rural population.

Godrej Appliances – The Launch of the ChotuKool Refrigerator



“Good Knight Fabric Roll-On”

1. Idea Generation

- The process began when Godrej’s R&D and marketing teams identified a **growing concern among Indian parents:**
- Conventional mosquito repellents (coils, vaporizers, and sprays) **contained chemicals not suitable for children’s skin.**
- Parents wanted a **safe, convenient, and portable solution** for outdoor protection (e.g., at school, park, or travel).

Sources of idea:

- Consumer feedback and surveys
- Observation of lifestyle changes (outdoor activities increasing)
- Rising awareness about dengue and malaria prevention

Idea:

Create a **skin-safe, child-friendly mosquito repellent** that can be used easily anytime, anywhere.

2. Product Definition (Concept Development & Screening)

- A **natural mosquito repellent** made with essential oils that could be applied **on clothes instead of skin**, offering 8 hours of protection.

Product positioning:

“Mosquito protection that is safe for babies and kids — applied on clothes, not skin.”

Target Market:

- Parents with young children (especially urban and semi-urban areas)
- Travelers and outdoor users

Screening & Feasibility Check:

- Market research showed no existing Indian brand offering a fabric-based mosquito repellent.
- Technical feasibility: could essential oils be made long-lasting on fabric?
- Economic feasibility: cost of natural ingredients vs consumer pricing.
- The idea passed the screening as both **innovative and practical**.

3. Prototyping (Product Design and Development)

- Developed several formulas using **natural oils like citronella and eucalyptus**.
- Ensured the oil blend **stuck to fabric but evaporated slowly** to repel mosquitoes.
- Tested various **applicator designs** — roll-on bottles, sprays, wipes, etc.

Packaging Innovation:

- The team selected a **small roll-on bottle** that dispenses four tiny dots of the product on clothes (no contact with skin).
- The design made it portable, non-leaky, and affordable (₹75).

Prototype Testing:

- Tested among internal employees and a small group of parents for usability and smell.

4. Initial Design (Feasibility and Market Testing)

- At this stage, Godrej conducted **pilot tests** to ensure market acceptance and technical stability.

Technical feasibility:

- Verified the stability of essential oils under heat and humidity.
- Ensured the bottle worked properly under different conditions.

Market testing:

- Conducted **test launches** in selected cities (Mumbai, Bangalore, Pune).
- Collected data on consumer behavior, purchase intent, and repeat usage.

Modifications:

- Adjusted the formula to make the fragrance lighter.
- Improved roll-on ball design for smoother application.

5. Validation and Testing

- **Safety testing:** Dermatological and pediatric tests confirmed it was safe for all age groups.
- **Efficacy testing:** Proved to repel mosquitoes for up to 8 hours.
- **Regulatory approval:** Obtained FSSAI and other relevant certifications for consumer safety.
- **Packaging validation:** Leak-proof testing and shelf-life confirmation.
- **Marketing validation:**
Ran a limited ad campaign — “Just 4 dots on clothes, mosquitoes stay away!”
Feedback was overwhelmingly positive — consumers valued **safety, ease, and affordability.**

6. Commercialization (Launch and Post-Launch Evaluation)

- After successful validation, the product was **launched nationwide** in 2018 under the **Good Knight** brand.

Launch Strategy:

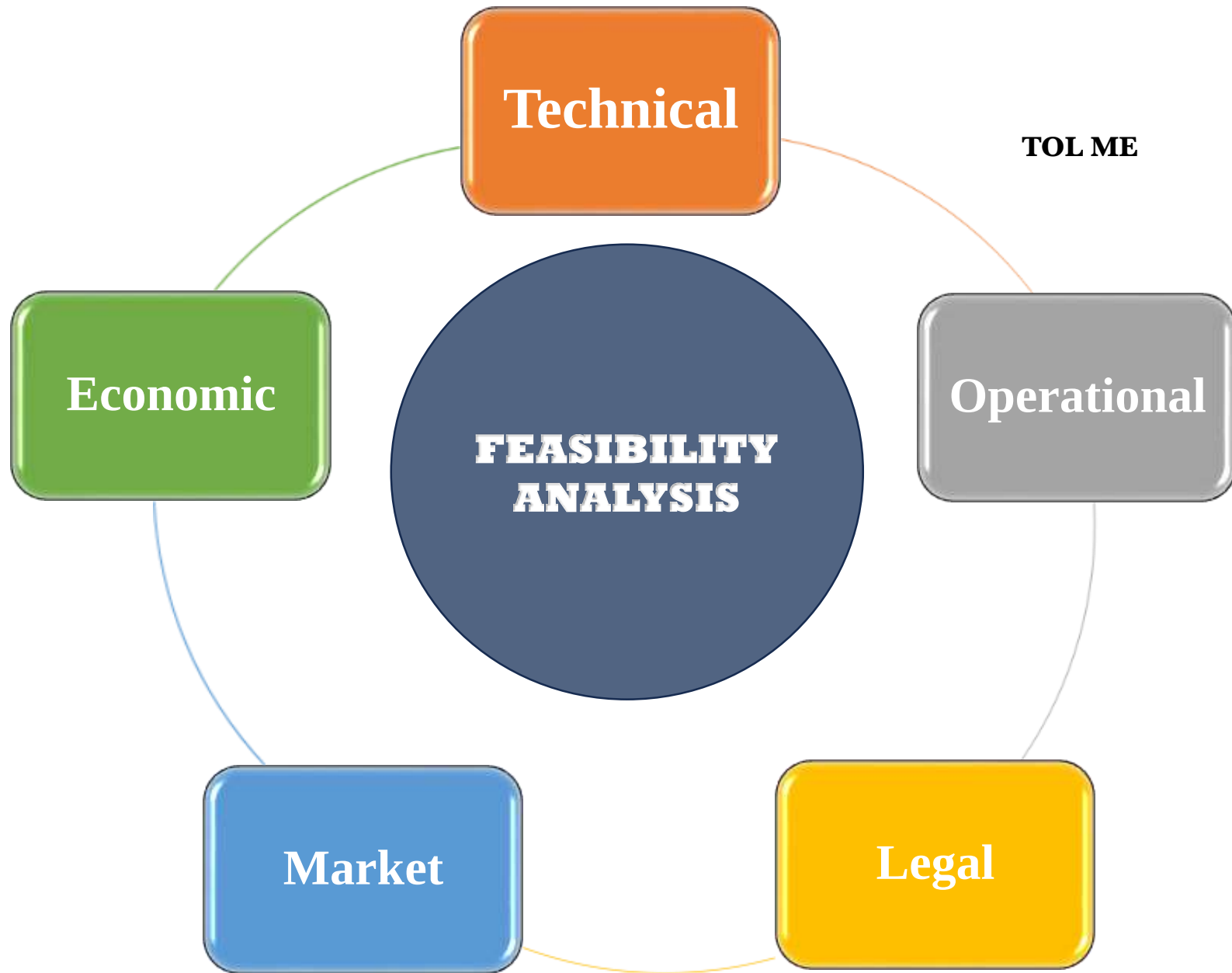
- **Tagline:** “Tough on mosquitoes, safe for kids.”
- **Advertising:** Television, digital campaigns, and influencer marketing with parenting communities.
- **Distribution:** Sold through supermarkets, medical stores, and e-commerce (Amazon, Flipkart).
- **Pricing:** ₹75 for 8 ml bottle — affordable for middle-class families.

Post-launch evaluation:

- Initial sales exceeded expectations; repeat purchase rate was high.
- Based on consumer feedback, Godrej later launched “**Good Knight Fabric Roll-On Outdoor Protection Pack**” and a **refill version**.
- The product expanded to **rural markets** through awareness campaigns in schools and health drives.

Feasibility Analysis

- A feasibility study is a detailed analysis that considers all of the **critical aspects** of a proposed project in order to determine the likelihood of it succeeding.
- A feasibility study is an analysis used in measuring the **ability and likelihood** to complete a project successfully including all **relevant factors**. It must account for factors that affect it such as **economic, technological, legal and scheduling factors**.
- A feasibility study is an assessment of the practicality of a proposed plan or project.
- A feasibility study analyses the viability of a project to determine whether the project or venture is likely to succeed. The study is also designed to identify potential issues and problems that could arise while pursuing the project.
- As part of the feasibility study, project managers must determine whether they have enough of the right people, financial resources, and technology. The study must also determine the return on investment, whether this is measured as a financial gain or a benefit to society, the latter in the case of a nonprofit project.



Key Components of a Feasibility Study

1. Technical Feasibility

Determines whether the **project is technically possible** with the available resources and technology. A technical feasibility study will determine if the project can be implemented from a technological standpoint and identify potential technical risks and limitations.

Key Considerations:

- **Technology Assessment:** Evaluates the technologies needed for the project, including **hardware, software, and technical expertise**. It examines whether the technology is available, proven, and reliable.
- **Resource Availability:** Assesses whether the organization has the necessary **technical resources, such as skilled personnel, equipment, and infrastructure**.
- **Operational Capacity:** Considers whether the organization can **operate the new system or technology effectively**. This includes evaluating current operational processes and whether they can be adapted to the new technology.
- **System Integration:** Analyzes how well the proposed technology will integrate with **existing systems and processes**. Compatibility with existing systems is crucial to avoid disruptions.

2. Economic Feasibility (Financial Feasibility)

Evaluates the financial aspects of the project to determine **whether it is economically viable and profitable**. The economic feasibility study concludes whether the project is financially viable and provides recommendations on financial strategies and potential risks.

Key Considerations:

- **Cost-Benefit Analysis:** Compares the expected costs of the project (initial capital investment, operational costs, etc.) with the potential benefits (revenue, cost savings, etc.). This analysis helps determine whether the benefits outweigh the costs.
- **Capital Requirements:** Assesses the total funding needed to start and sustain the project, including upfront investments and ongoing operational costs.
- **Funding Sources:** Identifies potential sources of funding, such as loans, investors, or internal financing, and evaluates the feasibility of securing these funds.
- **Revenue Projections:** Estimates the potential revenue the project will generate. This includes forecasting sales, pricing strategies, and market demand.
- **Profitability Analysis:** Examines the project's potential to generate profit, including return on investment (ROI), net present value (NPV), and internal rate of return (IRR).
- **Break-even Analysis:** Determines the point at which the project will cover its costs and begin generating profit.

3. Market Feasibility

Assesses the market potential for the **project, including demand, competition, and market trends**. The market feasibility study determines if there is a sufficient market for the product or service and provides insights into how to successfully enter and compete in that market.

Key Considerations

- **Market Analysis:** Evaluates the current market environment, including **size, growth, trends, and customer needs**. Understanding the market dynamics is essential for positioning the product or service.
- **Target Audience:** Identifies the primary market segment that the project will serve, including **demographics, preferences, and purchasing behavior**.
- **Competitor Analysis:** Examines existing competitors in the market, their strengths, weaknesses, market share, and strategies. Understanding the competitive landscape helps in defining the project's unique value proposition.
- **Market Entry Strategy:** Develops a strategy for entering the market, including **pricing, distribution, and promotional tactics**. This strategy should consider how to attract and retain customers.
- **Sales Forecasting:** Projects future sales based on market analysis, customer demand, and competitive positioning.
- **SWOT Analysis:** Identifies the project's strengths, weaknesses, opportunities, and threats in the market context.

4. Legal Feasibility

Ensures that the project **complies with all legal and regulatory requirements**. The legal feasibility study ensures that the project can be legally executed and identifies any legal barriers or challenges that need to be addressed.

Key Considerations:

- **Regulatory Requirements:** Identifies and evaluates the laws, regulations, and industry standards that apply to the project. This includes zoning laws, environmental regulations, health and safety standards, and industry-specific regulations.
- **Licensing and Permits:** Determines the necessary licenses, permits, and approvals required to legally operate the project. This could include business licenses, environmental permits, and intellectual property rights.
- **Contractual Obligations:** Examines existing contracts and agreements that could affect the project. This includes vendor contracts, partnership agreements, and employment contracts.
- **Legal Risks:** Identifies potential legal risks, such as litigation, non-compliance penalties, and liability issues, and develops strategies to mitigate them.
- **Intellectual Property:** Assesses the need for intellectual property protection, such as patents, trademarks, and copyrights, to protect the project's innovations.

5. Operational Feasibility

Determines whether the organization can **effectively implement and operate the project** within its current operational structure. The operational feasibility study concludes whether the organization has the capability to execute and sustain the project operationally and identifies any necessary changes or improvements.

- **Key Considerations:**

- **Operational Structure:** Evaluates whether the organization's current operational processes, systems, and personnel can support the new project.
- **Resource Requirements:** Identifies the human, technical, and material resources needed to operate the project successfully. This includes staffing needs, training, and equipment.
- **Process Integration:** Assesses how the new project will integrate with existing processes and operations. This includes evaluating the impact on workflows, productivity, and efficiency.
- **Supply Chain Considerations:** Analyzes the supply chain requirements, including sourcing, logistics, and inventory management, to ensure the project can be sustained.
- **Sustainability:** Examines the long-term operational sustainability of the project, including maintenance, scalability, and adaptability to changes.

Feasibility Study of Campa Cola

1. Market Feasibility

- **Industry Outlook:** The Indian soft drink market is valued in billions and growing steadily with urbanization, rising incomes, and lifestyle changes. Carbonated beverages remain the largest segment.
- **Consumer Opportunity:** Strong nostalgia for the Campa brand (popular in the 1970s–80s) plus rising demand for affordable alternatives to Pepsi and Coca-Cola.
- **Competitors:** Coca-Cola (Thums Up, Sprite) and Pepsi (Pepsi, Mountain Dew) dominate, but their products are priced at a premium.
- **Advantage:** Reliance can leverage the “**Made in India**” identity, **nostalgia factor**, and **price competitiveness** to penetrate Tier-2 and Tier-3 markets quickly.

2. Technical Feasibility

- **Production:** Reliance already has access to bottling technology, carbonation facilities, and packaging units (through partners and its own investments).
- **Raw Materials:** Sugar, concentrates, CO₂, and PET bottles are available in India, with multiple suppliers ensuring supply security.
- **Distribution Infrastructure:** Reliance Retail, JioMart, and kirana partnerships offer ready-made logistics and shelf space across the country.

3. Economic Feasibility

- **Cost Factors:** Reliance enjoys economies of scale, backward integration, and strong bargaining power with suppliers, making Campa Cola production cost-efficient.
- **Pricing Potential:** Competitive pricing (below Coke/Pepsi) can attract price-sensitive Indian consumers.
- **Growth Drivers:** Urbanization, rising consumption in semi-urban and rural India, and India's youthful demographics.
- **Challenges:** **Health-conscious consumers shifting** toward low-sugar or natural beverages.

4. Financial Feasibility

- **Investment Requirement:** High initial costs for marketing and distribution; however, Reliance has committed multi-thousand crore investments into beverages.
- **Revenue Potential:** Even a modest market share (5–7%) could generate significant revenues given India's large beverage consumption.
- **Risk:** Heavy marketing costs and rooted brand loyalty toward existing cola giants may delay break-even.

5. Organizational & Legal Feasibility

- **Management Capability:** Reliance Consumer Products has proven ability in FMCG rollouts, with resources for R&D, branding, and retail integration.
- **Human Resources:** Skilled workforce already available in supply chain, marketing, and sales divisions.
- **Regulatory Compliance:** FSSAI norms, labeling requirements, and state licenses are manageable within Reliance's legal framework.

Project Report

- A project report summarizes a project's key aspects, including its **goals, budget, progress, and outcomes.**
- A project report is a **detailed document** that provides a comprehensive overview of a **project's objectives, progress, outcomes, and recommendations.**
- It serves as a **formal record** of the project's development and is used to **communicate** the project's status to **stakeholders, including management, clients, and team members.**
- It provides project managers with **critical information** to monitor and evaluate the project's performance, identify potential risks and challenges, and communicate progress to stakeholders

Need for a project report

Project Report is required for the following reasons:

- **Progress Tracking:** A project report tracks the progress of the project. It ensures the project stays on schedule, as outlined in the project plan.
- **Resource Management:** The report details how resources are allocated and used, crucial for efficient resource management. This includes insights from resource reports, highlighting how effectively the project team is utilizing resources.
- **Risk Identification:** It identifies potential risks at an early stage, a key aspect of risk management. Quick mitigation strategies can then be implemented to keep the project on track.
- **Informed Decision-Making:** The report aids the management team in making informed decisions. It provides data-driven insights for decision-making, often derived from various types of project reports.
- **Performance Evaluation:** The report evaluates team performance and the effectiveness of strategies. This is often reflected in progress reports, helping in assessing project execution.

- **Budget Oversight:** It assists in budget management by tracking expenditures. This is a critical aspect of cost-benefit analysis reports, where expenditures are compared with the allocated budget.
- **Quality Assurance:** It ensures the project adheres to quality standards. Regular reviews of outputs and processes are conducted, often highlighted in project management reports.
- **Historical Reference:** The report serves as a historical record for future projects. It offers valuable insights and lessons learned, crucial for writing a project report for subsequent initiatives.
- **Compliance and Reporting:** The report is crucial for complying with industry and regulatory standards. It provides necessary documentation and reports, a fundamental aspect of project management tools.
- **Loans & Finances:**

Contents of a detailed project report

A **detailed project report** must include the following information:

- Brief information about the project
- Experience and skills of the people involved in the promotion of the project
- Details and practical results of the industrial concerns of the promoters of the project
- Project finance and sources of financing
- Government approvals
- Raw material requirement
- Details of the requisite securities to be given to various financial organizations
- Other important details of the proffered project idea include information about management teams for the project, details about the building, plant, machinery, etc.

Common Project Report Types

Project reports can vary in purpose and scope, depending on the type of project being documented. Some common types of project reports include:

- **Status Reports:** These reports **provide ongoing updates** on the project's progress, including milestones achieved, challenges faced, and next steps. They help stakeholders stay informed about the project's status.
- **Feasibility Reports:** Feasibility reports assess the practicality and viability of a proposed project. They evaluate resources, costs, risks, and benefits to determine whether the project is worth pursuing.
- **Final / Annual Reports:** Evaluation reports **focus on assessing the success and effectiveness of a completed project**. They analyse the project's outcomes against predetermined criteria and measure its impact.

Project Appraisal

- Project Appraisal is a detailed and thorough **evaluation** process that aims to assess the feasibility, viability, and potential of a proposed project.
- It involves a **comprehensive analysis** of various aspects of the project, such as its economic, financial, technical, social, management, and environmental factors.
- The primary objective of this assessment is to determine whether the project is suitable for investment and financing and whether it aligns with the organization's goals and objectives.
- **Appraisal consists of an evaluation of all of the feasibility studies to determine the ability of the project to succeed. Thus, feasibility analysis and appraisal form the critical juncture in the integrated project cycle.**

Project Appraisal involves

- The purpose of it is **to determine whether the project is worth investing** in/suitable from a financing angle and whether it aligns with the organization's goals and objectives.
- **Checking the basic data, assumptions, and methodology** used in project preparation.
- **Reviewing the work plan, cost estimates, and proposed financing.**
- Assessing the project's organizational and management aspects.

Reasons for carrying out project appraisal

1. To choose the most **viable** project;
2. To assess the **creditworthiness** of projects;
3. To evaluate the **profitability** of projects;
4. To evaluate the project's **cost and benefits**;
5. To assess the number of **resources**, need to complete the project;
6. To determine the likely need for **fixed and operating capital**;
7. To foresee a **potential market** for the product;
8. To **evaluate the capability of the management** team to manage the project;
9. To evaluate the availability of different **production components**;
10. To help in **social audit** of the project.

Types of Project Appraisal

- **Technical Appraisal:** This involves assessing the technical feasibility of the project, including the **technology, processes, and methodologies required to complete** the project. It examines whether the project can be executed with **the available resources, technology, and expertise**.
- Technical feasibility analysis is the systematic gathering and analysis of the data pertaining to the **technical inputs required** and formation of conclusion there from.
- The availability of the **raw materials, equipment, hard/software, power, sanitary and sewerage services, transportation facility, skilled man power, engineering facilities, maintenance, local people** etc., depending on the type of project are coming under technical analysis.

- **Financial Appraisal:** Financial appraisal focuses on the project's financial viability, including **cost estimates, revenue projections, profitability, and funding requirements**. It includes techniques like **Net Present Value (NPV), Internal Rate of Return (IRR), and Payback Period** to assess whether the project will generate adequate returns on investment.
- **Social Appraisal:** Social appraisal assesses the project's impact on society, **including its effects on local communities, social equity, and quality of life**. It examines whether the project will have positive or negative social consequences.
- **Legal Appraisal:** Legal appraisal involves examining the legal aspects of the project, including compliance with laws, regulations, and contracts. It ensures that the project adheres to all relevant legal requirements and minimizes legal risks.

- **Economic Appraisal:** Economic appraisal evaluates the project's broader impact on the economy, including its contribution to GDP, employment generation, and overall economic development. It often includes cost-benefit analysis to measure the project's net economic benefits to society. How far the project contributes to the development of the sector, industrial development, social development, maximizing the growth of employment, etc. are kept in view while evaluating the economic feasibility of the project.
- **Environmental Appraisal:** Environmental appraisal evaluates the project's impact on the environment, including potential ecological damage, resource depletion, and pollution. It ensures that the project complies with environmental regulations and promotes sustainable development.

- **Managerial Appraisal**

Managerial competence, integrity, knowledge of the project, the promoters should have the knowledge and ability to plan, implement and operate the entire project effectively. The past record of the promoters is to be appraised to clarify their ability in handling the projects.

- **Commercial/ Market Appraisal**

The demand and scope of the project among the beneficiaries, customer friendly process and preferences, future demand of the supply, effectiveness of the selling arrangement, latest information availability on all areas, government control measures, etc. The appraisal involves the assessment of the current demand/market scenario, which enables the project to get adequate demand. Estimation, distribution and advertisement scenario also to be here considered into.

Example: Solar Power Plant Project in Rajasthan – ReNew Power

ReNew Power, one of India's largest renewable energy companies, planned to set up a **100 MW solar power project in Jaisalmer, Rajasthan**. Before implementation, the project underwent a detailed appraisal:

- **Technical Appraisal**

- Rajasthan has one of the highest solar irradiance levels in India (5.5–6 kWh/m²/day).
- Availability of barren land suitable for solar farms.
- Technology choice: Polycrystalline solar PV modules with expected plant life of 25 years.
- Assessment of grid connectivity for power evacuation to the nearest substation.

Market Appraisal

- Demand for clean energy was growing due to government targets (National Solar Mission).
- State electricity boards and private buyers were willing to purchase solar power under long-term Power Purchase Agreements (PPAs).
- Rising pressure on industries to use renewable energy increased market potential.

Financial Appraisal

- Project cost estimated at around ₹500 crores.
- Sources of finance: Debt from Indian banks + equity from promoters.
- Revenue forecast: 100 MW capacity with 19% Plant Load Factor (PLF) expected generation 166 million units per year.
- Cash flow projections, IRR (Internal Rate of Return) 14–16%, Payback period 7–8 years.

Economic Appraisal

- Contribution to reducing carbon emissions (160,000 tons of CO₂ annually).
- Job creation during construction and operation.
- Support for government's target of achieving renewable energy capacity of 175 GW by 2022.

Managerial Appraisal

- ReNew Power had prior experience in executing large-scale solar projects.
- Strong technical team and partnerships with EPC contractors ensured smooth implementation.

Business plan

- A **business plan** is a document that outlines a company's goals and the strategies to achieve them.
- A business plan is a document that outlines a business's goals, strategies, and financial projections. It's a roadmap that helps a business owner think through and structure their business, and it can help them secure funding and grow their business.
- A business plan documents your **business goals, strategies, and marketing plans for the long-term.**
- A project plan, on the other hand, **outlines specific objectives and tasks that need to be accomplished in order to achieve those goals.**
- **Business Plan is broader, focusing on the overall strategy and growth of the business. Project Planning is specific to a particular project, with detailed tasks and schedules.**

Developing a business plan

ECMOPMOF

1. Executive Summary

Briefly summarize the business idea, mission statement, and what makes the business unique. State the main goals of the business.

Key Success Factors: Highlight the factors critical to achieving success.

Example Taneria

- **Mission:** To revive and celebrate India's traditional handwoven textiles and craftsmanship by offering authentic and sustainable ethnic wear.
- **Vision:** To become a leading global brand for Indian traditional wear, promoting sustainability and artisanship.
- **Goals:** Expand the retail and online presence across India and abroad, enhance artisan partnerships, and achieve 20% annual revenue growth over the next five years.

2. Company Description

Business Structure: Describe the business's legal structure (e.g., sole proprietorship, partnership, corporation).

Nature of Business: Explain what the business does, the industry it operates in, and the products or services offered.

- **Eg: Background:** Taneria is a retail brand under the Titan Company, focusing on handwoven sarees and ethnic wear. The brand sources directly from artisans across various regions in India.
- **Products:** The product line includes **sarees, lehengas, dupattas, stoles, and other ethnic apparel**, Cotton low price kurtas with a focus on authentic **fabrics like Banarasi, Kanjivaram, Chanderi, Tussar, and more.**

3. Market Research and Analysis

Industry Overview: Provide an overview of the industry, including trends and growth potential.

Target Market: Define the specific market segment you are targeting, including demographics and needs.

Competitive Analysis: Analyze competitors, their strengths and weaknesses, and how your business will differentiate itself.

Eg: Market Analysis

- **Target Market:** The primary target audience includes women aged 25-55 who appreciate traditional Indian wear, with a secondary audience of NRIs and international buyers interested in ethnic fashion.
- **Industry Trends:** Increasing demand for sustainable fashion, a growing preference for handcrafted products, and a resurgence of traditional clothing in modern wardrobes.
- **Competitive Landscape:** Competitors include brands like Fabindia, Manyavar-Mohey, Ray ethnic, and regional ethnic wear stores. Taneria's focus on handwoven authenticity and direct artisan partnerships provides a unique positioning.
- **Market Opportunity:** The global Indian ethnic wear market is expanding, with online channels growing rapidly. There's a potential to tap into Tier-2 and Tier-3 cities and the international market.

4. Organization and Management

Organizational Structure: Outline the company's organizational structure, including key roles and responsibilities. Provide bios of the management team, highlighting their experience and expertise. Mention any advisors or mentors who will support the business.

Eg: Business Structure: Taneria operates under Titan Company Limited. The management team consists of professionals with experience in retail, fashion, supply chain management, and marketing.

- **Team Structure:** Includes a product sourcing team, marketing team, e-commerce team, retail managers, and an artisan outreach department.

5. Products or Services

Product/Service Description: Describe the products or services offered, including features and benefits.

Unique Selling Proposition (USP): Highlight what makes your product or service unique in the market.

Eg:

- **Product Line:** Handwoven sarees (Kanjivaram, Banarasi, etc.), bridal wear, stoles, dupattas, and men's ethnic wear (potential future expansion).
- **Service Strategy:** Customization options for bridal wear, personalized shopping experiences in-store, and online styling advice.
- **Unique Selling Proposition:** Taneria sources directly from artisans, ensuring fair wages and sustainability. The brand emphasizes traditional weaving techniques while incorporating modern designs.

6. Marketing and Sales Strategy

Marketing Plan: Detail how you will promote your product or service, including branding, advertising, and public relations. Outline the sales process, including channels, pricing, and customer relationship management (CRM).

Sales Forecast: Provide projections of sales revenue over the next few years.

Eg: Online Presence: Strengthen e-commerce capabilities by expanding the product catalog, optimizing user experience, and leveraging social media for brand storytelling.

- **Retail Expansion:** Open new stores in high-potential markets, including Tier-2 and Tier-3 cities.
- **Digital Marketing:** Use influencer collaborations, fashion bloggers, and traditional attire-themed campaigns to drive awareness.
- **Events and Exhibitions:** Participate in exhibitions showcasing Indian textiles and collaborate with fashion shows focused on ethnic wear.

7. Operational Plan

Operations Strategy: Explain how the business will operate on a day-to-day basis, including production, logistics, and supply chain management.

Facilities: Describe the physical location(s) where the business will operate.

Technology: Discuss any technology or software required for operations.

Eg: Supply Chain Risk- To ensure faster speed-to-market and maintain a lean and agile supply chain, Taneira will stick to local sourcing.

Taneira, which operates over 100 textile clusters in India. Taneira is working with over 250 partners - a combination of weavers, master weavers, cooperatives and aggregators. The in-house team curates the collection that is designed by them and also co-creates designs with these partners.

Store Layout Plans: Visuals for new retail outlets.

8. Financial Plan & Funding Requirements

Startup Costs: List the initial costs to start the business, including equipment, inventory, and working capital.

Financial Projections: Provide detailed financial statements, including income statements, cash flow projections, and balance sheets for the next 3-5 years.

Break-even Analysis: Determine the point at which the business will become profitable.

Capital Needs: Specify how much funding is needed and how it will be used.

Funding Sources: Identify potential sources of funding, such as loans, investors, or grants.

Eg: Cost Breakdown: Major expenses will include retail setup, marketing, e-commerce development, and supply chain enhancements.

Profit Margin Goals: Aim for a 15-20% net profit margin over the next three years by controlling costs and increasing sales volume. is now introducing new lines with prices starting between ₹1,500 and ₹2,000, targeting value-seeking consumers in tier two and tier three cities.

Industrial Unit

- Industrial Unit means a unit which is established/proposed to be established as Production/Processing/Service Enterprise.
- An **Industrial Unit** refers to a **specific entity or facility engaged in the production, processing, or manufacturing of goods and materials**. It typically includes the physical infrastructure, machinery, equipment, workforce, and resources necessary to carry out industrial activities. These units operate within sectors such as manufacturing, mining, construction, and energy production.
- An **Industrial Unit** can be defined as: "A distinct establishment where industrial activities such as manufacturing, processing, assembling, or production take place, aimed at transforming raw materials into finished or semi-finished goods, using various forms of labor, machinery, and technology."

Setting up an Industrial Unit

UIROLIFSS

1. Understanding the Industrial Policy:

Industrial policy is a government's strategic plan to promote the growth of a country's manufacturing and industrial sector. It involves the use of policies, regulations, and initiatives to encourage investment, innovation, and competitiveness. The Indian government has introduced a number of industrial policies, including the New Industrial Policy of 1991

- Government has implemented robust policies to create an investor-friendly environment and encourage industrial development. The government has **introduced various schemes targeting different sectors**, such as the Make in India (2014), MSME Policy, ASPIRE, Startup India Seed Fund Scheme (SISFS), Credit Guarantee Scheme for Startups (CGSS), Start-up India (2016), PLI, Atmanirbhar Bharat (Self-Reliant India) Initiative (2020), Atal Innovation Mission (AIM), UNNATI 2024, Electronics Manufacturing Policy, etc.

2. Identifying the Suitable Location:

Choosing the right location for your industrial unit is crucial for success. There's a wide range of **industrial areas, industrial parks, and Special Economic Zones (SEZs)**, Industrial Corridors across the nation. Determine the ideal location based on **factors such as proximity to markets, availability of resources, connectivity, and infrastructure.**

The major industrial regions of India are:

1. Mumbai-Pune Industrial Region
2. Hugli Industrial Region.
3. Bangalore-Tamil Nadu Industrial Region
4. Gujarat Industrial Region
5. Chotanagpur Industrial Region
6. Vishakhapatnam-Guntur Industrial Region
7. Gurgaon-Delhi-Meerut Industrial Region
8. Kolfam-Thiruvananthapuram Industrial Region.

- Gujarat International Finance Tec-City (GIFT City): Ideal for **finance and IT** services.
- Noida and Greater Noida (Uttar Pradesh): Suitable for **electronics manufacturing**.
- Visakhapatnam SEZ (Andhra Pradesh): Good for **pharmaceuticals and heavy** industry.
- North Eastern States: Provide special incentives like tax holidays and subsidies, suitable for industries **like agro-processing and bamboo-based products**.
- **Sustainable Industrial Zones:** Locations like **Bhiwadi in Rajasthan** and **Vapi in Gujarat** have specific industrial zones with **Environmental safeguards**.
- **Ease of Doing Business Rankings:** States like **Andhra Pradesh, Gujarat, Maharashtra, Tamil Nadu, and Karnataka** are highly ranked for ease of doing business, offering simplified regulatory processes and investor-friendly policies.
- **Common Facility Centers (CFCs):** The Micro and Small Enterprises – **Cluster Development Program (MSE-CDP)** supports the development of CFCs that provide shared infrastructure, such as testing labs and tool rooms, which helps reduce individual investment costs for MSMEs.

3. Regulatory Approvals and Clearances: To set up an industrial unit, one must obtain **various approvals and clearances from government authorities**. These include **land acquisition clearance, water and electricity connections, environmental clearances, fire safety approvals, building plan approvals, Pollution Control Certificates**, etc. Familiarize oneself with the required processes and complete the necessary paperwork to acquire these permissions.

4. Obtaining Land: To start an industrial unit, acquiring land is a critical step. Government provides **industrial land and sheds** through various industrial estates. Other options include private **land acquisition or leasing** through industrial developers. Understand the land acquisition process and the necessary documentation involved, such as lease agreements, possession certificates, etc.

Land Allotment Approval: If the land is acquired from a state industrial development corporation (like MIDC in Maharashtra or GIDC in Gujarat), it needs approval for land allotment.

5. Licensing and Registrations: Applying for business licenses and registrations is essential for legal compliance. Registering your unit with the **Registrar of Companies (RoC)**, obtaining a **Tax Identification Number (TIN)** or **Goods and Services Tax (GST) registration**, and **acquiring necessary trade licenses** are some of the key registrations required. Consult professionals or agencies familiar with these procedures to ensure compliance.

Industrial License: Some industries, such as defense equipment, aerospace, and hazardous chemicals, require a special industrial license from the **Department for Promotion of Industry and Internal Trade (DPIIT)**.

6. Infrastructure Development and Connectivity: While setting up your industrial unit, **infrastructure development and connectivity** play a vital role. Government offers a well-connected **transportation network with national and state highways, rail connectivity, air connectivity through multiple airports, port and robust logistics networks.**

- Guj government is investing in improving infrastructure to support industrial growth. Gujarat Infrastructure Development Board (**GIDB**) is already in operation.
- **Delhi-Mumbai Industrial Corridor (DMIC) and Chennai-Bengaluru Industrial Corridor (CBIC).** An ambitious project with smart cities, industrial zones, and logistic hubs, ideal for setting up manufacturing units, logistics companies, and export-oriented businesses.
- The **Pradhan Mantri Kisan SAMPADA Yojana (PMKSY)** supports infrastructure for the agro-processing industry.

7. Financial Support and Credit Facilities

- **Credit Guarantee Fund Trust for Micro and Small Enterprises (CGTMSE):** Provides credit guarantees for collateral-free loans up to ₹2 crores for MSMEs, encouraging banks to lend to small businesses.
- **Term Loans and Working Capital Finance:** Available from banks and financial institutions for purchasing machinery, equipment, and raw materials, or to meet operational expenses. Many banks offer sector-specific loans tailored for industries like textiles, food processing, and export-oriented units.
- **Subsidized Interest Loans:** Some schemes provide loans at a reduced interest rate for specific sectors, such as technology, export-oriented units, and women entrepreneurs.
- **Technology Upgradation Grants:** Schemes like the **Credit Linked Capital Subsidy Scheme (CLCSS)** for technology upgradation provide subsidies to small and medium enterprises (SMEs) to adopt new technology.

- Start-up India offers tax holidays for three consecutive years and exemption from capital gains tax.
- Stand-Up India facilitates bank loans between ₹10 lakhs and ₹1 crore to at least one Scheduled Caste (SC) or Scheduled Tribe (ST) borrower and one woman borrower per bank branch.
- **North Eastern Industrial and Investment Promotion Policy (NEIIPP):** Offers incentives like a 100% excise duty exemption, income tax exemption, and capital investment subsidies for industries located in northeastern states.

8. Skill Development and Manpower: Setting up an industrial unit **requires a skilled workforce.** Direct employment opportunity of about 83,000 will be generated. **Prime Minister Employment Generation Programme (PMEGP), training programs, Entrepreneurship and Skill Development Programme and apprenticeship schemes** to address specific skill requirements for employment generation..

- ITIs impart training in multi-skilling courses such as Diamond Cutting and Polishing, Gemology, Operator in Advanced Precision Machine Tools, etc. which were recently introduced by DGET
- **National Skill Development Corporation (NSDC)** to design training programs and standards that cater to the needs of various sectors, ensuring a skilled workforce for industrial units.
- **Skill India Initiative**

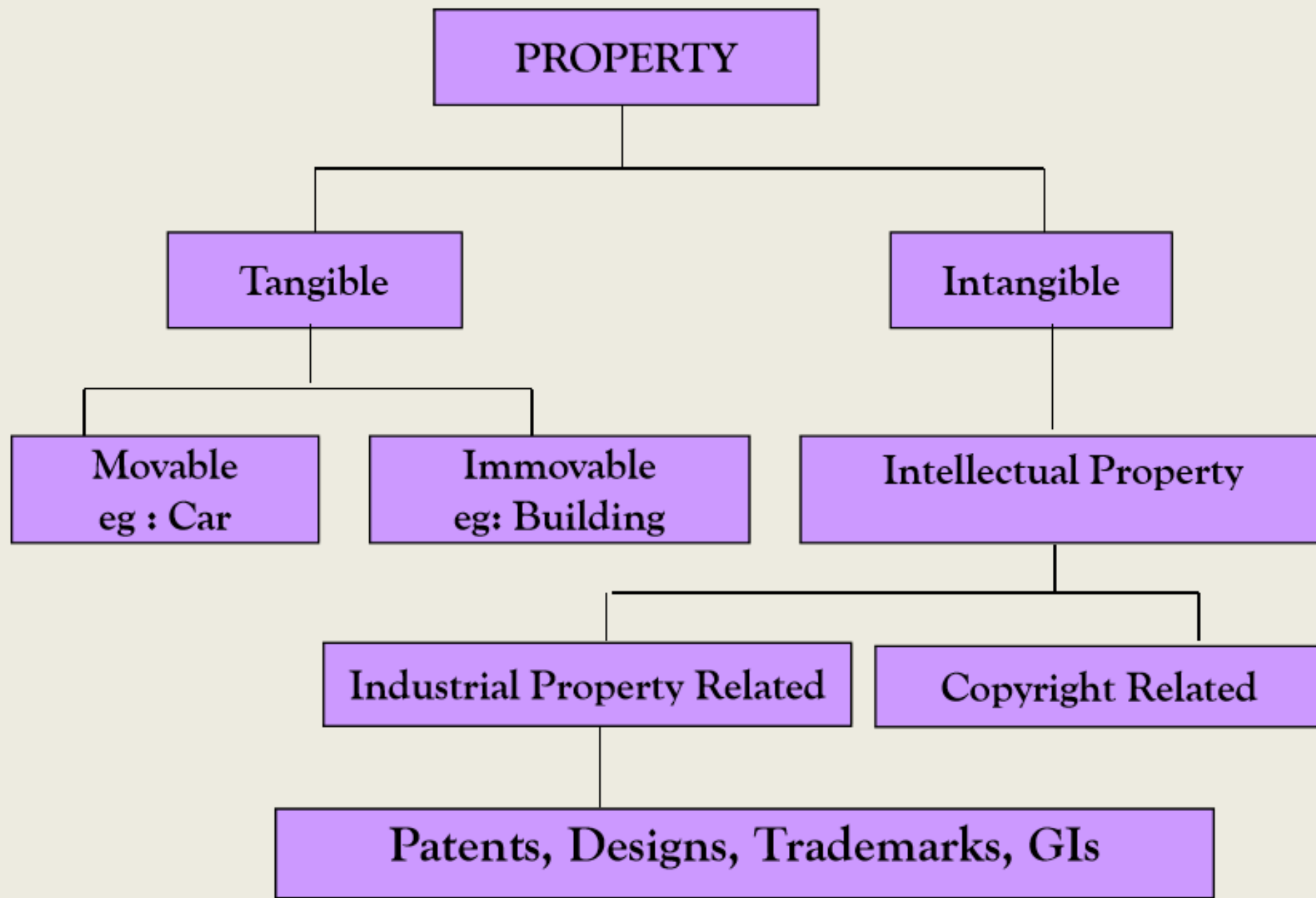
- **9. Support and Assistance:** The government extends support through multiple agencies and departments. Agencies such as **Udyog Bandhu (UP), Pollution Control Board, and District Industries Centers** provide assistance and guidance related to industrial development, pollution control, land acquisition, personnel matters, etc. Utilize these resources for a smooth setup process.
- **Single Window Clearance:** Many states offer a single-window clearance system to facilitate faster approvals for setting up industries.
- **Udyog Bandhu** also acts as the **nodal agency** for the implementation of the Nivesh Mitra project, a web-based online facility for entrepreneurs who want to set up an enterprise in Uttar Pradesh.

Intellectual property (IP)

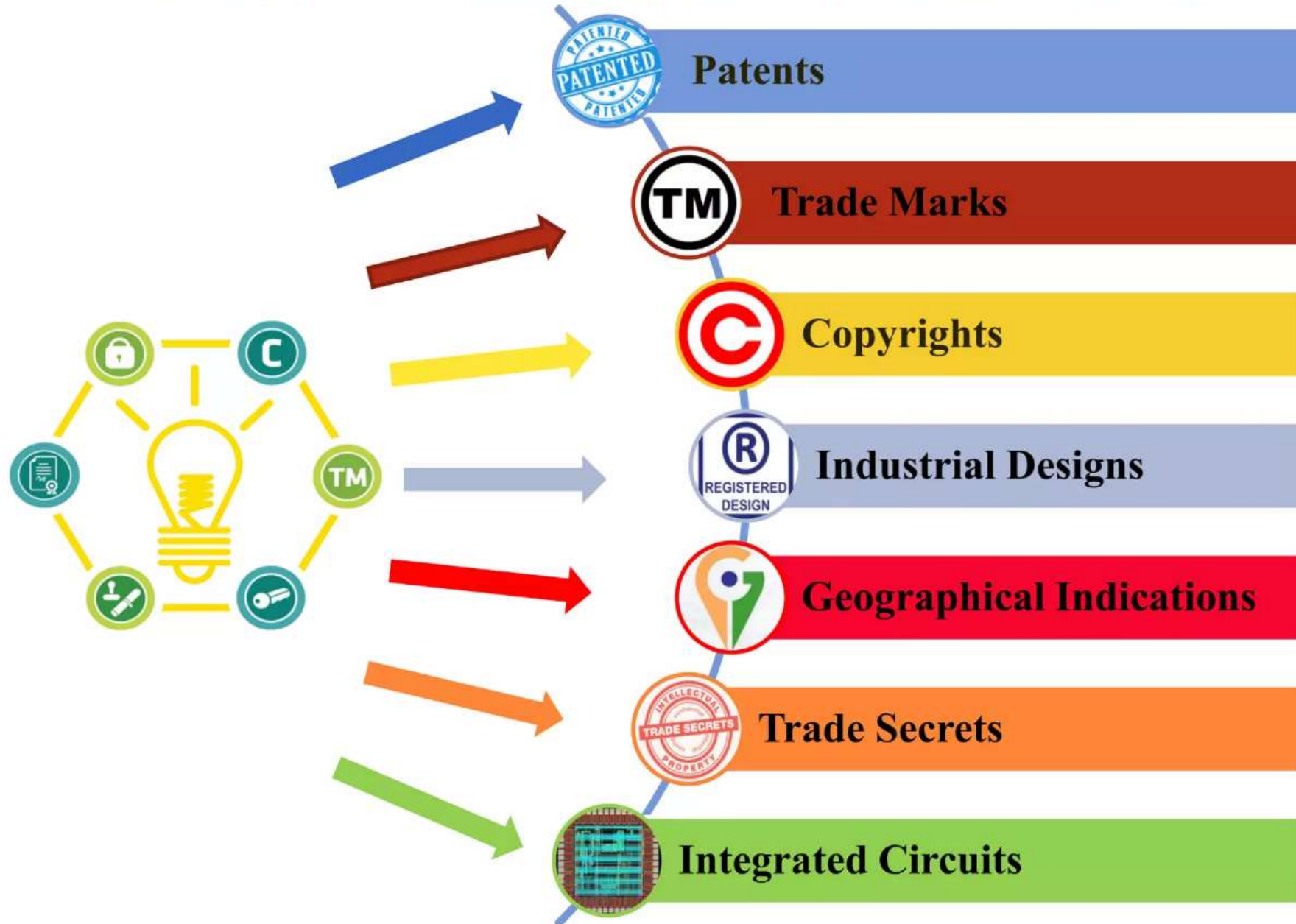
- Intellectual property (IP) refers to creations of the mind, such as inventions; literary and artistic works; designs; and symbols, names and images used in commerce.
- IP is protected in law by, for example, patents, copyright and trademarks, which enable people to earn recognition or financial benefit from what they invent or create. By striking the right balance between the interests of innovators and the wider public interest, the IP system aims to foster an environment in which creativity and innovation can flourish.
- Intellectual property is everywhere, i.e., the music you listen to, the technology that makes your phone work, the design of your favourite bike, the logo on your chocolate, etc.
- It exists in all the things you can see — all are the products of human creativity and skill, such as inventions, books, paintings, songs, symbols, names, images, or designs used in business, etc.

Intellectual property rights

- **Intellectual property rights** are the rights **given to persons over the creations of their minds**. They usually give the creator an exclusive right over the use of his/her creation for a certain period of time.
- IPR provide certain exclusive rights to the inventors or creators of that property, in order to enable them to reap commercial benefits from their creative efforts or reputation. **These legal rights confer an exclusive right to the inventor/creator or his assignee to fully utilize his invention/creation for a given period of time.** It is very well settled that IP play a vital role in the modern economy.
- India is a part of WTO nation and all 149 WTO nations have agreed for the IPR protection by including Trade Related Intellectual Property Rights (TRIPS).



TYPES OF INTELLECTUAL PROPERTY RIGHTS:



Intellectual Property Rights (IPR) in India are governed by several acts, including:

- **Patents Act of 1970:** Oversees patents in India and is administered by the Office of the Controller General of Patents, Designs, and Trade Marks (CGPD TM)
- **Trademarks Act of 1999:** Includes clauses for international trademark registration
- **Design Act of 2000:** Protects innovation and the interests of consumers and manufacturers
- **Geographical Indications of Goods (Registration and Protection) Act, 1999:** Protects and registers geographical indications for products
- **Copyright Act of 1957:** Handles copyrights
- **Protection of Plant Varieties and Farmers Rights Act, 2001:** Protects plant varieties
- **The Semiconductor Integrated Circuits Layout- Design Act, 2000 (“SICLD Act”).**

1. PATENT

- A Patent is an exclusive right granted by law to applicants for an invention, **which is a product or a process that provides a new way of doing something, or offers a new technical solution to a problem.**
- A Patent gives monopolistic rights to its owner to exclude others, from making, using, selling, offering for sale or importing the product or the process for producing the product without his consent.
- Any product or process which is **new, non- obvious and capable of industrial application** can be patented.
- The term of every patent in India is **twenty years** from the date of filing the Patent application.

Definition:

- A Patent is an exclusive right granted by law to applicants for an invention, which is a product or a process that provides a new way of doing something, or offers a new technical solution to a problem.
- “A Patent is an intellectual property right relating to inventions and is the grant of exclusive right, for limited period, provided by the Government to the patentee, in exchange of full disclosure of their invention, **for excluding others, from making, using, selling, importing the patented product or process producing that product for those purposes.**”

The Indian Patent act, 1970 has classified the patentable inventions as follows:

- **Process:** According to the law, process means **new methods of production, research, testing analysis or the technological** process that can be validated as new or unique. These are **not the physical objects** are in documented form.
- **Machines:** In the patent law, machines are **physical objects**. It can be any **product, instrument, or any other physical** item that is new or useful.
- **Manufacture:** According to the patent law, manufacture means any physical item has been made up by a **new and unique way or materials**.
- **Composition of matter:** Composition of matter in a patent law refers to the **mixture of the chemical compounds, medicines and botanical compositions** which are new , unique and are useful and **do not exist in the nature in that particular state**

Patentability Criteria

A new product or process which involves an inventive step and capable of being made or used in an industry and should **meet following criteria**.

a) Novelty: Novelty means the matter disclosed in the specification is **neither published in India nor anywhere else** where before the date of filing of patent application in India. the invention must be novel, meaning thereby that the Invention must not be in existence

b) Non-obvious: the Invention must be non- obvious, i.e. the Invention must be a **significant improvement to the previous one**; mere change in technology will not give the right of the patent to the inventor. Example: Camera + Phone

c) Utility: Industrially applicable means the invention should possess utility, so **that it can be made or used in an industry**.

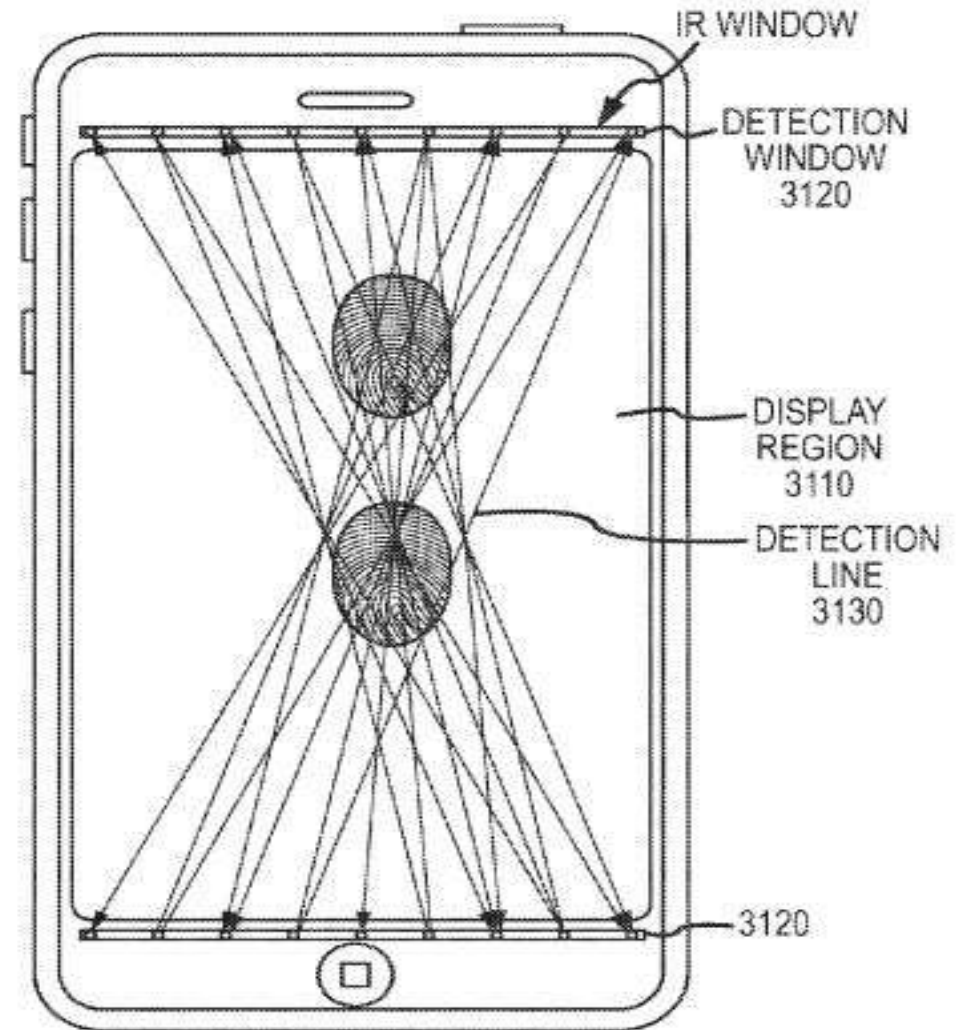
Some famous examples of patent:

A) The entire **Mach 3 system of Gillette** protected by 35 patents, costs \$35 billion just to bring to market.

B) **Tata Motors** had filed up 34 patents for **Tata Nano** to make it cheapest car of the world.

C) Apple's touch-screen patent

The patent, referred to by many as "the Steve Jobs patent, covers a "touch-screen device, method and graphical user interface for determining commands by applying heuristics" Apple filed for the patent in April 2008.



Patents

- **Example: Bajaj Auto's DTS-i Technology**

- Bajaj Auto, an Indian two-wheeler manufacturer, developed the "Digital Twin Spark Ignition" (DTS-i) technology to improve engine efficiency in motorcycles. The technology was patented to **prevent competitors from using the same ignition system**. As a result, Bajaj Auto gained a competitive edge in the market by offering fuel-efficient and high-performance bikes.

- **Example: Tata Motors' Electric Vehicle Technologies**

- Tata Motors has filed several patents related to electric vehicle (EV) technologies, including **battery management systems and regenerative braking**. These patents help Tata maintain a technological lead in India's emerging EV market by protecting their innovations from competitors.

2. TRADEMARKS

- A trademark is any sign that individualizes the goods of a given enterprise and distinguishes them from the goods of its competitors.
- A trademark is a mark which **is unique, distinctive, made up of names, symbols, signs, sounds, images, shape, packaging, colour combination, and capable of distinguishing one product from another.**
- Term of registration of a trademark is **ten years**, which may be renewed for a further period of ten years on payment of prescribed renewal fees.
- The Trade Marks Registry was established in India in 1940 and presently it administers the Trade Marks Act, 1999 and the rules thereunder.

Definition:

- **“A trademark is any sign that individualizes the goods of a given enterprise and distinguishes them from the goods of its competitors.”**
- The Trademarks Act, 1999 defines Trademark as following: “Section 2 (b) “Trademark” means a mark capable of being represented graphically and which is capable of distinguishing the goods and services of one from those of others and may include shape of goods, their packaging and combination of colours
- “A trademark is a symbol or word that characterizes your product or service and distinguishes it from other products or services on the market. It makes your customers recognize your product or service.”

Trademarks

- **Example:** Amul's Brand Protection

- The brand name "Amul" and its iconic "Amul Girl" mascot are trademarked. This trademark protection ensures that no other dairy company in India can use the name "Amul" or a similar character for marketing dairy products, which could confuse customers.

- **Example:** Zomato's "Z" Logo

- Zomato, a popular Indian food delivery platform, has trademarked its "Z" logo. This protects the company's brand identity and ensures that no other food-related app or company can use a similar logo or symbol, thus avoiding brand dilution and customer confusion.

Types of Trademark can be registered

- Letters or numerals or any combination there of.
- The right to proprietorship of a trade mark may be acquired by either registration under the Act or by use in relation to particular goods or service.
- Devices, including fancy devices or symbols
- Monograms
- Combination of colors or even a single color in combination with a word or device
- Shape of goods or their packaging
- Marks constituting a 3- dimensional sign.
- Sound marks when represented in conventional notation or described in words by being graphically represented.
- Any name (including personal or surname of the applicant or predecessor in business or the signature of the person), which is not unusual for trade to adopt as a mark.
- An invented word or any arbitrary dictionary word or words, not being directly descriptive of the character or quality of the goods/service.

A trademark can be a word, expression, logo, letter, number, slogan, combination of colors, sound, smell or a hologram.

Sound



Letters



Bata



Words



Names



Number

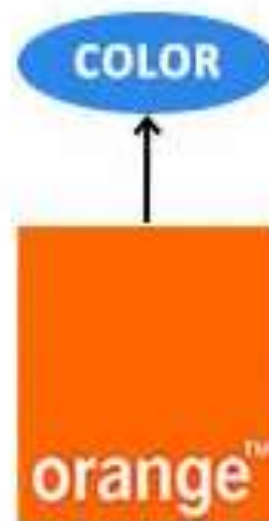
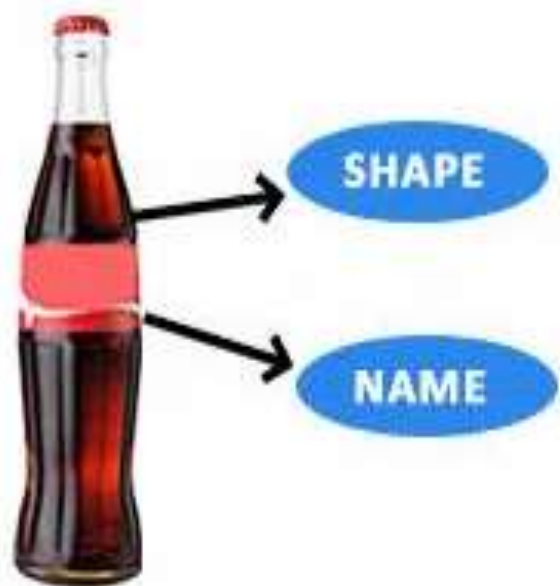


Expression



Logo





TYPES OF TRADEMARK

Procedure/Steps for Trademark Registration



1. Trademark Search:

- A Trademark search is the first step in determining the uniqueness of your mark, and its similarity to other, pre-existing marks. Without a search there may be a greater risk of being sued for Trademark infringement, the rejection of your Trademark application, and a third-party challenging your Trademark application.

2. Application for Registration of Trademark:

- Applications for registration of a trademark are to be filed by a person claiming to be the proprietor of a trademark, in the office of the Trade mark Registry, within the territorial limits of the place of business in India.
- Example : Trademark Registry, Ahmedabad,
- Trademark Jurisdiction: The state of Gujarat and Rajasthan and Union Territory of Damman, Diu, Dadra and Nagar Haveli.

3. Examination of application by the registry: Examination of the application by the Registrar to ascertain whether it is distinctive and does not conflict with existing registered or pending trademarks and examination report is issued.

4. Acceptance of application or refusal to accept:

- An application for registration of a trademark is accepted only if the formal requirements are fulfilled. Before issuing a total or partial refusal of the application, the office should give the **applicant an opportunity to make corrections**.

5. Advertisement of application

- When an application is absolutely accepted or subject to some conditions, the registrar should advertise the application.
- Purpose: **for oppositions of interested persons with in time**.

6. Opposition to registration

- With in **three months from date of advertisement** with prescribed fee in prescribed manner.

7. Certificate of Registration : Final step in the Trademark registration procedure is the issuance of Trademark registration certificate. After the application for Registration of Trademark is accepted by the Registrar, the Registrar shall issue to the applicant a Certificate of Registration under the seal of the Trademark Registry.

- If there is no objection and /or opposition raised, the process of Registration of Trademark usually **takes 15 to 18 months.**
 - **A trademark is designated by the following symbols:**
 - **™(for an unregistered trade mark)**
 - **SM (for an unregistered service mark)**
 - **® (for a registered trademark)**
 - Generally, one who has filed an application (pending registration) can use the TM (trademark) SM (Service Mark) designation with the mark to alert the public of his exclusive claim. The claim may or may not be valid. The registration symbol, ®, may only be used when the mark is registered.
- **8. Trademark Renewal :** The validity period of registration certificate is for ten years and after that the same can be renewed subject to the payment of renewal fees.

Term/Duration of a Trademark in India

- The duration of a registered trademark is ten years subject to renewals after payment of prescribed fee. Failure to renew can lead to removal of trademark from the register.
- An application for renewal of a trademark can be filed within six months from Constantia (Body) the expiry of the last registration of trademark.

3. COPYRIGHT

- Copyright is a right given by the law to creators of **literary, dramatic, musical and artistic works and producers** of cinematograph films and sound recordings.”
- Copyright is an exclusive legal right granted to the creators of intellectual work. Copyright protects “original works of authorship” that are fixed in “a tangible form of expression.”
- Copyright owner has rights to reproduce, translate, adapt, perform, distribute and publicly display the work, etc.

Definition

- The word copyright is a mixture of two words – ‘copy’ and ‘right’. To be more precise copyright means ‘right to copy’, wherein only the creator or his authorised person has a right to reproduce a work. In simple words, a legal right which is possessed by the owner of Intellectual property is a copyright.
- “Copyright is a right given by the law to creators of literary, dramatic, musical and artistic works and producers of cinematograph films and sound recordings.”

- **Copyrights**
- **Example:** Bollywood Films
 - Movies produced in Bollywood, such as "Sholay" or "Dangal," are protected by copyright law. This prevents unauthorized copying, distribution, or broadcasting of these films without the owner's permission. The copyright ensures the producers and creators receive royalties or licensing fees when their films are shown in cinemas, on television, or via streaming services.
- **Example:** Music by AR Rahman
 - Songs composed by Indian music legend AR Rahman are protected under copyright law. This ensures that any use of his music in films, advertisements, or events must receive proper licensing or permission from the rights holders, ensuring fair compensation for the artist.

Types of Work Protected by Copyright:

- Copyright is provided for a wide range of expressions like literary works, Artistic work, music and Cinematography.
- Literary works include **novels, books, newspaper articles, journals, research papers, magazines, instruction manuals.**
- Artistic work includes **painting, sculpture, diagrammatic representation, drawing.**
- **Music** includes original music work and a specific combination of melody and harmony.
- **Cinematography** includes **movies, tv shows, documentaries, television recording of events.**



Literary including Software – Books, Essay, Compilations, Computer Programs



Artistic – Drawing, Painting, Logo, Map, Chart, Photographs, Work of Architecture



Dramatic – Screenplay, Drama



Musical – Musical Notations



Sound Recording – Compact Disc



Cinematograph Films – Visual Recording which includes sound recording

Examples of Copyright

1. "Harry Potter" by J.K. Rowling, the text is protected by copyright
2. Songs produced by Indian artists, such as "Jai Ho" from the movie Slumdog Millionaire, are copyrighted
3. Indian software companies like Tally or Zoho protect their software products through copyright law.
- 4. Cartoon Image of Satish Acharya** Here, the cartoon image shown is the creation of Cartoonist Satish Acharya, which is protected by him through copyright. So, no one can use this cartoon image without his permission, because it is copyrighted by its creator.



Copyright

- It is **not mandatory to register** the work to claim copyright and it commences the moment the work is created. However, it is advised to register the work for better protection, it will serve as proof in a matter of dispute.
- [Section 13](#) of the Copyright Act, 1957 states that the copyright can be given only for the original work. Copyright is usually provided for 60 years
- Literary, Dramatic, Musical or Artistic Works – Lifetime of the author plus 60 years from the death of the author.
- For others – 60 years from the year in which the recording was published.

- EXAMPLE
- Starbucks Coffee v. Sardarbuksh Coffee (CASE)
- On the 27th of September, 2018, the defendant conceded and changed all of its outlets' names to "*Sardarji-Bakhsh Coffee & Co.*" It was also held that if a third party were to use the term "Bakhsh", the defendant would be granted the right to file a suit against such infringement. The suit at hand was thus settled



Industrial Design

Patent



Trademark



Geographical Indications
(Tirupati Laddu)



Patent

Industrial Design

Trademark

Trade secret



Geographical Indications
(Kolhapuri Chappal)



Patent

Copyright

Trademark

What's Protected?

Innovations, methods, or goods

"Original works of authorship," this includes writings, art, architecture, music, and more

Protect project identity, covering brand names, logos, and service marks.

Requirements to be protected

Innovative, useful, and non-obvious

Protection given automatically when a work is created and doesn't need to be formally filed

Similar looking, sounding, or meaning marks

Term of protection

Lasts 20 years, depending on the type of invention and the country of filing

Typically lasts for **60** years after the death of the author

Potential to last indefinitely. However, they require periodic renewal, after the initial 5 years of registration.

Rights granted

Prohibits anyone from creating, using, selling, or importing without prior authorization

Exclusive control over the display, sharing, performance, and licensing of the work

Prohibiting the use of similar looking, sounding, or meaning marks,



COPYRIGHT

Protection is automatically granted to the author for their original, creative or intellectual work.



Works: Books, lectures, dramatic and musical works, cinematography, drawings, paintings, architecture, sculpture, photographs, illustrations, maps, plans sketches etc.



Rights: To distribute copies or phonorecords of the work to the public by sale or other transfer of ownership, or by rental, lease, or lending; To perform the work publicly in person or through audio transmission.



Validity: Registration not mandatory but recommended. Valid through the lifetime of the author and 60 years after his/her death. Owner has protection in most countries.



TRADEMARK

This is a brand element which distinguishes your goods and services from those of your competitors and other traders.



Marks: Word mark, a logo mark or a slogan, shapes, and unconventional marks like colours, sounds, gestures, animation, holograms etc are also registrable as a trademark.



Rights: Exclusive right to use the mark and prevent anyone from using it without permission. It also gives the owner the right to license, assign and sell the mark in return of some compensation.

LOGO



Validity: 10 years which can be made perpetual, as long as renewed every 10 years. Should be applied separately in every country in which protection is required and has a market in.



PATENT

This concerns obtaining protection for new inventions that are new, original and useful.



Invention will be patented if: Novel or Original, has an Inventive step (non-obvious) and has some Industrial application.



Rights: Exclusive authority over the patented invention, right to exclude others and exploit the patent and earn from it.



Validity: Patent protection is territorial right and therefore it is effective only within the territory of India. Separate patents required to be filed for each country where protection is required. Patent is valid for period of 20 years after which it goes in public domain.

